aYc Analytics Pvt Ltd- Anti-Harassment (PoSH) Policy

Policy ID & Version: AYC-POL-HR-007| v1.0
Effective Date: 2025-09-01
Prepared By: HR Department
Confidentiality & Applicable to: Company Internal Use Only

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1. Purpose

This policy outlines AYC Analytics Pvt Ltd commitment to creating a safe, respectful, and inclusive workplace free from sexual harassment. It ensures adherence to the PoSH Act, 2013, and establishes procedures for the prevention, prohibition, and redressal of sexual harassment at the workplace.

2. Scope

This policy applies to all employees (including interns, consultants, contractors, and temporary workers) of AYC Analytics Pvt Ltd, across all locations and work settings, including remote and virtual environments. It also extends to third parties (clients, vendors) where interactions occur in the course of work.

3. DEFINITION:

I. Sexual Harassment – Harassment of a Female/Male employee consisting of any unwelcome sexually determined behavior, whether directly, indirectly, by any male/female in charge of the management or a male/female co-employee either individually or in association with other persons to exploit the sexuality of co-employee to harass him/her in a manner which prevents or impairs his/her full utilization of full benefits, facilities or opportunities or any other behavior which is generally considered to be derogatory .
II. Aggrieved Women - In relation to workplace, a woman of any age whether employed or not, who alleges to have been subjected to any act of sexual harassment by the Respondent.
III. Respondent: Employees against whom the complaint has been filed.

4. Core Guidelines and Principles Under the Policy

- **Sexual Harassment shall include but not limit to:**
  - Physical Contact & Sexual advances
  - Demand or request for sexual favors;
  - Sexually- colored remarks;
  - Showing pornography;
  - Any other unwelcome physical, verbal or non-verbal or written conduct of a sexual nature.
- **Zero Tolerance**: The company maintains a zero-tolerance approach to any form of sexual harassment.
- **Inclusivity**: This policy protects all employees regardless of gender identity, with emphasis on women's safety as per the PoSH Act.
- **Confidentiality**: All complaints and investigations are handled with utmost confidentiality and sensitivity.
- **Non-Retaliation**: Retaliation against any complainant or witness is strictly prohibited and subject to disciplinary action.
- **Legal Compliance**: Fully adheres to the PoSH Act, 2013 and its rules.

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4. INTERNAL COMMITTEE:

a. Each complaint of Sexual Harassment shall be dealt with utmost confidentiality and urgency by an Internal committee consisting of:
   - ➢ Presiding Officer - 1 member
   - ➢ Internal Member - 3 members
   - ➢ External Member - 1 member (NGO / Legal expert)

b. Within 3 working days, the internal committee shall commence Official Internal Enquiry by:
   - ➢ By informing the said complaint to the respondent.
   - ➢ By instructing to stop the alleged act of Sexual Harassment immediately
   - ➢ By informing not to reach out to the complainant directly or indirectly
   - ➢ By asking an immediate explanation from him/her to the same by asking an immediate explanation from him/her to the same

c. Within 5 working days from the receipt of original complaint, the designated person shall respond in writing to the complainant informing him/her about the initial steps taken by aYc Analytics in order to stop the alleged act(s)

d. Within 15 days from receipt of the complaint, the Internal committee shall record and accordingly communicate in writing to the complainant and the Respondent, its prima facie findings, upon giving the concerned parties a fair and due opportunity to represent themselves and upon conducting fact finding, truth verification and counseling sessions with persons involved in alleged act(s)

e. A complaint will be closed no later than one month from receipt of complaint by recording the decisions of the internal committee, accordingly informing to the complainant and the Respondent of the same.

f. Employees are duty bound to assist in investigative steps, employees' wholehearted participation shall be mandatory in this regard. Whistleblowers shall be protected from exposure, retaliation or hostility.

g. Within 2 working days from receipt of *prima facie* findings or the charges, if the complainant or the Respondent is dissatisfied with the decision of internal committee, she or he may appeal specifying the reasons in writing to Managing Director. Within 5 working days from the receipt, the appeal shall be finally disposed of by written communication to the said party. The decision of Managing Director shall be final and cannot be appealed.

5. Roles and Responsibilities

- Employees: Must maintain professional behavior and report any incidents of harassment.
- Managers: Responsible for promoting a harassment-free culture and escalating any concerns immediately.
- Internal Committee (IC): A legally required body to investigate and resolve complaints. It includes a presiding officer (senior female employee), two employees, and one external member with experience in social work or legal knowledge.
- HR Department: Supports the IC, ensures training, and keeps documentation for audits and compliance. The list of Internal Committee members, along with their contact details, is maintained by the HR Department and displayed prominently within office premises and on the company's internal platforms.

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6. Procedures

1. **Filing a Complaint**:
   - A complaint should be submitted in writing to the Internal Committee within 3 months of the incident.
   - Assistance will be provided in filing if the complainant is unable to write the complaint themselves.
2. **Investigation Process**:
   - The IC will conduct an inquiry within 7 days of receiving the complaint, ensuring fairness to both parties.
3. **Outcome and Action**:
   - Post-investigation, the IC will submit a report to the employer within 24 hours.
   - In case of decision establishing the offence of Sexual Harassment of the complainant, within 3 working days, the internal committee shall recommend Disciplinary action against the offender considering the nature and extent of injury caused to the complainant, prior complaints or repetition of offence etc and the impact of the offence on the company profile as a whole.
   - The position of the offender and the criticality of the position occupied by the offender shall not be any hindrance to the disciplinary action taken against the offender.
   - The disciplinary action that shall be commensurate with the nature of the gravity of the offence, shall include but not limited to:
     - ➢ Warning
     - ➢ Written apology from offender
     - ➢ Transfer
     - ➢ Debarring from supervisory duties
     - ➢ Denial of employee benefits like increments/promotion/salary correction etc.
     - ➢ Cancellation of specific work Assignment
     - ➢ Suspension
     - ➢ Dismissal/Termination

     Annual report summarizing complaints and Redressal of Sexual harassment shall be prepared by designated person. The said report as well as all documents regarding Sexual Harassment complaints shall be in the custody of designated person and will be termed as 'Strictly Confidential'.
4. **Annual Reporting**:
   - The number and nature of cases (without personal identifiers) will be reported to the District Officer and included in the company's annual report.
5. **Confidentiality**:
   - All complaints, proceedings, and records shall be kept strictly confidential.
   - The identities of the complainant, respondent, and witnesses shall not be disclosed, except where required by law or necessary to implement the inquiry's outcome.
   - Any breach of confidentiality by parties involved shall lead to disciplinary action.
6. **Awareness**:
   - Mandatory PoSH training will be conducted annually.
   - The policy will be visibly posted and included in onboarding.

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6. Exceptions

- Anonymous complaints will be reviewed cautiously and followed up only if credible.
- If the complaint is found to be false or malicious, action may be taken against the complainant, as per the PoSH Act.

7. Amendment & Review

This policy will be reviewed annually or as required by legal changes. Updates must be approved by the HR Head and the Managing Director.

Approval

Reviewed by: LEGAL AUTHORITY
INNOIPS

Approved by: Kunal Liman
Designation: CEO
Date: 2025-08-31

AYC ANALYTICS PRIVATE LIMITED MUMBAI

Kunal Liman
CEO

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